

United States v. Alvarez - Sentencing Memorandum and Objections

Sentencing Memorandum and Objections in United States v. Alvarez. Procedural posture:

Defendant filed a timely criminal notice of appeal after a within-Guidelines sentence; the government invokes an appellate waiver while defendant challenges Guidelines calculation and allocution. Record material: The Rule 11 transcript includes a waiver colloquy but the court summarized the waiver in broad terms. Issue: Leadership enhancement at sentencing. Standard of review: clear error if preserved; plain error if forfeited. Record excerpt: Rule 11 waiver colloquy. The court asked whether Alvarez understood that he was giving up most appeal rights and confirmed counsel had reviewed the agreement. Nature of suit: Criminal - Sentencing. Lower tribunal: U.S. District Court for the Eastern District of North Carolina.